



Emergency Bushfire Response in Primary Industries Grants

Guidelines **Primary Producers**

Queensland Bushfires, September - December 2019

1. About the program

The objective of this assistance measure made under agreements between the Commonwealth and Queensland State Government under the Disaster Recovery Funding Arrangements, is to assist primary producers directly affected by the Queensland Bushfires, September – December 2019, with costs associated with immediate recovery activities needed to rebuild their primary production enterprises.

The Emergency Bushfire Response in Primary Industries Grants provide a grant to primary producers to help pay for costs of clean-up and other emergency measures including disposing of dead stock, and rebuilding or replacing damaged or destroyed on-farm infrastructure.

The Australian Government has made the grant assistance received under this scheme non-assessable, non-exempt income.

2. Available funding and supporting evidence

- 2.1 The maximum grant amount for clean-up, reinstatement activities and emergency measures is \$75,000.
- 2.2 Should an initial application be for less than the maximum grant amount, further applications may be submitted if additional expenditure is required to complete clean-up, reinstatement activities and emergency measures.
- 2.3 Evidence in support of claims for grants must include:
 - a) a written list of bushfire-related damage with cost estimates for each item;
 - b) photographic evidence of the direct bushfire-related impacts;
 - c) for expenses already incurred, documented evidence of actual expenditure (including official receipts and official invoices);
 - d) evidence that demonstrates the applicant meets relevant eligibility criteria;
 - e) any other information deemed appropriate.



3. How funding may be used

3.1 Grants are provided to help pay for the costs of clean up, reinstatement activities and emergency measures associated with the immediate recovery of primary production enterprises. Eligible claims may cover:

- a) hiring, leasing or purchase of equipment and/or materials to undertake clean-up;
- b) additional labour costs (above and beyond normal wage expenditure, i.e. day-to-day staffing);
- c) disposing of damaged goods and injured or dead livestock, including associated costs;
- d) repairing a building or repairing or replacing fittings in a building, if the repair or replacement is essential for resuming operation of the primary production enterprise. (Funding is not available for repairs to a building that is used as a dwelling, unless it is used for carrying on the primary production enterprise, for example staff accommodation);
- e) repairing or replacing fencing and horticultural netting (not covered by other assistance);
- f) reconditioning/repairing essential plant and equipment, including repairing damage to, or replacing, water tanks, de-silting dams, water reticulation systems, forestry equipment, aquaculture and fishing equipment;
- g) salvaging (but not replacing) crops, grain, feed, fertiliser and timber;
- h) health assessment, treatment and maintenance for livestock, poultry and aquaculture species;
- i) purchase of fodder, grain, and feeds for livestock and poultry, and/or stock agistment costs, and associated transport costs (not covered by other assistance);
- j) purchase or hire/lease costs for equipment essential to the immediate resumption of the business (e.g. energy equipment such as generators and solar panels for non-residential purposes);
- k) replacement of essential water used for firefighting purposes;
- l) water cartage;
- m) payment for tradespeople to conduct safety inspections.

4. Eligibility criteria

4.1 To be eligible for the grant, the applicant must:

- a) be a primary producer (as defined in Section 9 below);
- b) hold an Australian Business Number (ABN) and have held that ABN at the time of the disaster;
- c) have a primary production enterprise (as defined in section 9 below) located in the defined area for the eligible disaster that has suffered direct damage as a result of the eligible disaster;
- d) have been engaged in carrying on the primary production enterprise when affected by the eligible disaster;
- e) have lodged an application by 31 December 2020;
- f) intend to re-establish the primary production enterprise.

4.2 An applicant may also be eligible for a grant if both of the following apply:

- a) the applicant's primary production enterprise is located outside the defined disaster area for the eligible disaster but is carried on at least sometimes on a regular basis in the area;
- b) plant or equipment of the primary production enterprise situated in the defined disaster area has been damaged or livestock has died as a result of the eligible disaster.

- 4.3** Where an applicant's income from primary production is less than 50 per cent of their total income, the applicant may be eligible for a grant if it can be demonstrated that:
- a) in the ordinary course of business the applicant would meet that requirement, but:
 - i. their primary production income is currently reduced due to drought; and/or
 - ii. in the opinion of the Queensland Rural and Industry Development Authority (QRIDA), based on the demonstrated production potential of the primary production enterprise, will eventually derive the majority of his or her income from the primary production enterprise; and
 - b) the applicant's total off-farm income (per person) is less than \$100,000 gross per annum.
- 4.4** Applicants will not be eligible for a grant, or part of a grant, if:
- a) the applicant does not meet the criteria at 4.1, 4.2 or 4.3; or
 - b) the applicant has received, or has been approved to receive, financial assistance for costs associated with the items set out under 3.1 from another government assistance scheme, however the applicant may be eligible for a grant for costs that are not covered by the other scheme; or
 - c) the applicant is entitled to receive a payment under an insurance policy for costs directly associated with an item set out at 3.1, however the applicant may be eligible for a grant for costs that are not covered by their insurance, or for amounts in excess of the value insured; or
 - d) another party to the primary production enterprise, (for example a party holding a separate ABN number), has already applied for a grant under this program.

5. Eligible separate businesses

5.1 Applicants who operate their primary production enterprise under a single ABN on separate properties in different locations may apply for assistance up to the maximum amount available for the eligible disaster for each eligible business.

5.2 Consideration of eligible separate primary production enterprises may cover:

- a) the staffing arrangements of the separate primary production enterprises;
- b) whether the primary production enterprises have their own plant, equipment or stock;
- c) the accounting arrangements of the separate primary production enterprises;
- d) whether the separate primary production enterprises operate under their own trading names;
- e) the commercial scale, viability and autonomy of each primary production enterprises.

6. Terms and Conditions

6.1 Successful applicants will be required to:

- a) provide any additional information required by QRIDA to assess an application, including assessment of losses arising from the disaster event;
- b) agree to subsequent audits under the scheme including permission for on-farm access to confirm that grant and co-contribution funding provided have been expended on approved purposes.

7. Defined disaster areas

<i>Eligible disaster</i>	<i>Defined disaster areas</i>	<i>Application closing day</i>
Queensland Bushfires, September – December 2019	• Bundaberg Regional Council • Gladstone Regional Council • Gympie Regional Council • Ipswich City Council • Livingstone Shire Council • Lockyer Valley Regional Council • Mareeba Shire Council • Noosa Shire Council • Scenic Rim Regional Council • Somerset Regional Council • Southern Downs Regional Council • Sunshine Coast Regional Council • Toowoomba Regional Council	31 December 2020

8. More information

For more information on the Emergency Bushfire Response in Primary Industries Grants Scheme contact QRIDA on **Freecall 1800 623 946** or email contact_us@qrida.qld.gov.au.

QRIDA also has [Regional Area Managers \(RAMs\)](#) who are available to assist:

Location	Phone	Mobile	Location	Phone	Mobile
Brisbane	07 3032 0118	0427 763 787	Kingaroy	07 4182 1816	0417 778 317
Bundaberg	07 4154 2874	0417 775 547	Mackay	07 4967 0728	0427 770 147
Cloncurry	1800 623 946	0427 007 240	Rockhampton	07 4936 1872	0417 775 245
Emerald (with an office in Longreach)	07 4987 5807	0417 775 345	Roma	07 4622 8527	0427 029 141
			Toowoomba	07 4634 8987	0427 690 448
Innisfail	07 4064 2824	0429 497 757	Townsville	1800 623 946	0408 180 644

9. Definitions

Direct damage means a direct and material impact of fire or bushfire-related firefighting activities (including the loss of water used in firefighting activities), on business assets or equipment, including livestock.

Defined area for an eligible disaster means the area that the appropriate Minister has defined for the purpose of activating the Disaster Recovery Funding Arrangements. These are published on QRIDA's website (also see Section 7 above).

Eligible disaster means the disaster defined by the appropriate Minister for the purpose of activating the disaster recovery funding arrangements, as 'Queensland Bushfires September – December 2019'.

Eligible separate business means a commercial entity that would be a commercially viable and autonomous business if other businesses operated by the primary production enterprise ceased to operate.

Primary producer means:

- a sole trader who spends the majority of their labour on, and derives the majority of their income from a primary production enterprise in agriculture (including aquaculture, horticulture and viticulture), fisheries, hunting or trapping, private forestry or apiary; or
- in relation to a partnership, private company or trust that carries on a primary production enterprise, the partners in the partnership, shareholders in the company or beneficiaries of the

trust who spend the majority of their labour on, and derive the majority of their income from, the primary production enterprise.

Primary production enterprise means:

- a) is established under the legal structure of a sole trader, partnership, trust or private company;
- b) is carried on by a primary producer and trades in a primary production industry, including the agricultural (including aquaculture, horticulture and viticulture), fisheries, hunting or trapping, private forestry or apiary industries;
- c) undertakes all primary production aspects of the business wholly in Australia;
- d) is registered for tax purposes in Australia with an Australian Business Number (ABN) and is registered for Goods and Services Tax (GST);
- e) is not under external administration or bankruptcy;
- f) is not a public company under the meaning of the *Corporations Act 2001* (Cth).

Official invoice means:

- a) an invoice including the name, address and ABN (if applicable) of the entity that issued the invoice and a description of each item to which the invoice relates which is clearly identifiable as being related to approved expenditure for the applicant.

Official receipt means:

- a) a receipt including the name and address and ABN (if applicable) of the entity that issued the receipt and a description of each item to which the receipt relates.

10. Other matters

10.1 The Australian Government has made the grant assistance received under this scheme non-assessable, non-exempt income. Applicants do not pay tax on non-assessable, non-exempt income and do not include the amount when they work out their tax loss. (Grant assistance received under this scheme is also not subject to GST.

10.2 Grants under this program may result in financial, taxation, legal or other impacts. Applicants are advised to seek independent financial advice in regards to these impacts. Applicants may also seek advice from the Australian Tax Office on 1800 806 218 if they have further questions about their individual situation.